

		insurance claim of “petitioner” Mirwais Azizi (Azizi). The stay is to prevent Azizi from proceeding with any arbitration until the other claim is resolved. Mobilitas, however, has failed to properly serve Azizi so as to concur jurisdiction with the court over Azizi. The only proof of service Mobilitas has served states the motion was served on an attorney who allegedly represents Azizi. There is nothing to show the law office represents Azizi. More importantly, there is nothing to show this law office has authority to accept service on Azizi’s behalf or that Azizi agreed to accept electronic service of the petition. Personal service of the case initiating document, and potentially as summons, generally is required for the court to acquire jurisdiction over a responding party. Mobilitas has failed to provide any evidence or authority to show this court has authority over Azizi so as to make any orders affecting Azizi’s rights. Moreover, Mobilitas has failed to present any evidence to show there is any pending arbitration for the court to stay. A demand for arbitration does not necessarily equate to a pending arbitration. All the court has is the conclusory statement by Mobilitas’s counsel that “Azizi demanded formal arbitration.” That is not sufficient. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. Mobilitas’s counsel is ordered to give notice of this ruling.
9.	Key vs. Delgado 2023-01316546	Before the court is the motion by plaintiff Carol Key (Plaintiff) for an award of attorney fees and costs in the amount of \$71,807.81. As more fully set forth below, the motion is DENIED. This case arises from an allegedly fraudulent deed being recorded in 2011 that gave defendant Dunia Delgado (Defendant) a five percent interest in Plaintiff’s San Clemente property. On November 20, 2025, the court entered a judgment after a court trial in favor of Plaintiff and against Defendant. Pursuant to the judgment, Plaintiff prevailed on the first cause of action for cancellation of written instrument and the third cause of action for quiet title. (ROA 219.) Plaintiff did not prevail on the second cause of action for slander of title or the fourth cause of action for violation of California Penal Code section 496. On a motion for attorney fees, the moving party has the burden to (1) establish entitlement to an award, and (2) document the appropriate hours expended and hourly rates. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) Attorney fees generally are not

	recoverable unless specifically provided for by statute or subject to an express agreement between the parties. (<i>D’Amico v. Board of Medical Examiners</i> (1974) 11 Cal.3d 1, 25; Code Civ. Proc., § 1021.) Code of Civil Procedure section 1021 provides, “Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided.” Here, Plaintiff seeks attorney fees pursuant to Code of Civil Procedure sections 874.010 and 874.020, which authorize an award of attorney fees and other disbursements or expenses in actions for partition of property. Plaintiff argues her complaint was akin to a partition action pursuant to Code of Civil Procedure section 871.010 et. seq., and as a prevailing party in a partition action, Plaintiff is entitled to recover her attorney fees and other expenditures. This case, however, was not a partition action. Plaintiff’s operative first amended complaint alleged causes of action for cancellation of a written instrument, slander of title, quiet title, and violation of California Penal Code section 496. Plaintiff did not allege a claim for partition and this case was neither litigated nor tried as a case for partition. As stated above, Plaintiff prevailed only on the claims for cancellation of written instrument and quiet title. A partition action serves a fundamental different purpose than an action to quiet title or cancel an instrument. A partition action is typically brought by co-owners to divide or sell commonly owned property and terminate their shared ownership. An action to quiet title or cancel an instrument is brought to establish clear title against adverse claims or clouds on title. (See, e.g., <i>LEG Invs. v. Boxler</i> (2010) 183 Cal.App.4th 484, 493 [primary purpose of partition suit is “to sever the unity of possession”]; <i>Robin v. Crowell</i> (2020) 55 Cal.App.5th 727, 740 [“A quiet title action is a statutory action that seeks to declare the rights of the parties in realty”]; <i>Weeden v. Hoffman</i> (2021) 70 Cal.App.5th 269, 292 [claim for cancellation of written instrument allows plaintiff to cancel instrument “that creates a cloud on the plaintiff’s title”].) Based on the foregoing, Plaintiff is not entitled to recover either her attorney fees or expenses under Code of Civil Procedure sections 874.010 and 874.020, and therefore the motion is DENIED IN ITS ENTIRETY. This ruling does not
--	---

		impact Plaintiff's statutory right to recover prevailing party costs under Code of Civil Procedure sections 1032 and 1033.5, and a memorandum of costs. This ruling is limited to this motion and the request to recover attorney fees and expenses pursuant to the partition statutes. Plaintiff's counsel is ordered to give notice of this ruling.
10.	<i>Bryan Cave Leighton Paisner LLP vs. Napster Corporation</i> 2026-01548951	OFF CALENDAR based on notice of withdrawal filed on May 21, 2026.
11.	<i>Domaoal vs. Caring Moments, Inc.</i> 2019-01104318	Before the court is the motion of judgment creditor Alicia Domaoal (Domaoal) to amend the judgment to add Joan Christine Sangrones Botin A/K/A Joan Christine Botin (Botin) and Immanuel Care Home LLC (Immanuel). As more fully set forth below, the motion is DENIED WITHOUT PREJUDICE. Judgment was entered in this action in October 2019 on the request of the California Labor Commissioner following administrative proceedings before the Labor Commissioner regarding the failure to pay wages. The Labor Commissioner awarded Domaoal \$73,631.26 in unpaid wages, damages, interest, penalties, and costs as against Caring Moments, Inc, a suspended California corporation. By this motion, Domaoal seeks to amend that judgment to add Botin and Immanuel as judgment debtors pursuant to Labor Code sections 200.3, subdivision (a), 238, subdivision (e), and 558.1, subdivision (a). Botin and Immanuel are not parties to the judgment. Domaoal, however, has only served this motion on Botin and Immanuel by mail, and has failed to show merely mailing copies of this motion to Botin and Immanuel at multiple unexplained addresses is sufficient to provide a basis for the court to exercise personal jurisdiction over these nonparties. When a party seeks to amend a judgment to at a nonparty as an alter ego of a judgment debtor, the court must have jurisdiction over the judgment debtor's alter ego in order to enter a valid judgment against the alter ego, and that is normally accomplished by service of process. (See <i>Milrot v. Stamper Med. Corp.</i> (1996) 44 Cal.App.4th 182, 186.)